Energy Wave

energywave.ai • Indicative SAFE terms — the instrument as proposed, finalized with counsel
16 October 2026 · EnergyWave Final

CONFIDENTIAL — FORECAST — FOR DISCUSSION · INDICATIVE TERMS · NO SAFE EXECUTED, NO OUTSIDE FUNDING RAISED

Indicative SAFE terms. What the October materials proposed, and what counsel sets at close.

The October deck and one-pager proposed a $60,000 SAFE with a three-month runway, with the valuation cap, discount and most-favoured-nation terms to be set with counsel. No SAFE has been executed and no outside funding has been raised. This page is the skeleton of the instrument, so that counsel and the founder can finalize it without re-deriving the rest; nothing here is adopted, funded or an offer.

1 · TERMS

Term	Indicative value
Issuer	EnergyWave, Inc., Delaware C corporation — formation in progress with K&L Gates LLP; the SAFE is issued on formation, and the file number and date are added then.
Instrument	SAFE — simple agreement for future equity; its form (post-money or pre-money; standard form or counsel's own) set with counsel.
Amount	$60,000 proposed on the October deck and one-pager; the current amount is set at close.
Valuation cap · discount · MFN · pro rata	Set with counsel.
Investors	Accredited investors — close friends, family and angel groups.
Securities exemption	Rule 506(b) or 506(c), as counsel determines; no general solicitation until counsel confirms.
Conversion	Into the next qualifying financing as counsel defines it in the chosen form, subject to the cap and discount; trigger definitions, change-of-control and dissolution treatment follow the chosen form.
Runway purchased	Three months, founder full-time.
Information rights	The program commitment applies: investors receive the same gate reports the public does; any additional rights set with counsel.
Signatory for the issuer	Ian McLean, Chief Executive Officer (officer titles confirmed on formation).
Strategic path	Structured to pursue strategic investment from In-Q-Tel — a stated intent, not a relationship.

2 · USE OF PROCEEDS (OCTOBER DECK, ESTIMATED ALLOCATION; THE CURRENT ALLOCATION IS SIZED AT CLOSE)

Line	Purpose	Amount	Read against counsel's quotes
Entity formation & legal	C-corp + 501(c)(3) setup	$4,000	Covers counsel's ~$2,800 formation estimate (5 October 2026); not yet the 501(c)(3) application.

Line	Purpose	Amount	Read against counsel's quotes
IP / patent counsel retainer	K&L Gates — provisional filings	$25,000	Covers a $2,000 coversheet provisional and most of a $10k–$20k non-provisional (counsel's estimate, 5 October 2026).
Founder runway	3 months, full-time	$24,000	The founder's salary in the forecast model is a separate, later item.
Reserve & travel	Investor / advisor meetings	$7,000	—
Total	**Capital-readiness round**	**$60,000**	"Estimated allocation — confirm IP retainer and founder runway with counsel" (deck slide 11).

3 · CONTEXT THE INVESTOR WILL ASK ABOUT

Capital raised to date: no outside debt or equity, no SAFE executed and no outside funding raised (15 October 2026); the October competition entry recorded approximately $10,000 including founder contributions. A competition prize is not capital raised.

Prior SAFE: none has been executed.

Capital Readiness and the Seed Round: the October materials say "not a seed round"; the round may be combined with the Seed Round, whose projected sizing is in the Seed Round documents. Every term above is indicative and is finalized with counsel; nothing is an offer.

Basis: the 13 October 2026 deck and one-pager; counsel's estimates of 5 October 2026; the founder's statements of 15 October 2026.